

26STCV18813 26STCV18813

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Case Number: 26STCV18813 Hearing Date: September 9, 2026 Dept: 407

Tentative Ruling

Judge Brock Hammond, Department 407

HEARING DATE: September

9, 2026 TRIAL

DATE: Not set

CASE: Jaya Taylor v. 600 Tower, LLC, et al.

CASE NO.: 26STCV18813

DEFENDANTS

SBDTLA 1-4, LLC AND GREYSTAR CALIFORNIA, INC.'S

DEMURRER

TO PLAINTIFF'S VERIFIED COMPLAINT

MOVING PARTY: Defendants SBDTLA 1, LLC; SBDTLA 2, LLC;

SBDTLA 3, LLC; SBDTLA 4, LLC; and Greystar California, Inc.

RESPONDING PARTY: Plaintiff Jaya Taylor

I. BACKGROUND

This

is a landlord-tenant dispute concerning a residential tenancy at 600 S. Spring

Street, Apt. 417, Los Angeles, CA 90014 ("the Property"). On June 12, 2026, Plaintiff, Jaya Taylor, filed

this action against Defendants, 600 Tower, LLC; 1200 Management, LLC; SBDTLA 1, LLC; SBDTLA 2, LLC; SBDTLA 3, LLC; SBDTLA

4, LLC; and Greystar California, Inc.

("Greystar"), asserting causes of action for (1) violation of Civil Code § 1942.4, (2) tortious breach of the warranty of habitability, (3) private nuisance, (4) Business and Professions Code § 17200, et seq., (5) negligence, (6) breach of covenant of quiet enjoyment, (7) intentional infliction of emotional distress, (8) intentional influence to vacate, (9) violation of Consumer Legal Remedies Act, (10) violation of Los Angeles Tenant Anti-Harassment Ordinance, (11) false advertising, and (12) negligent hiring, retention, and supervision. Plaintiff seeks recovery of punitive damages, attorney's fees, and restitution.

On

July 16, 2026, SBDTLA 1, LLC; SBDTLA

2, LLC; SBDTLA 3, LLC; SBDTLA 4, LLC (collectively,

"SBDTLA Defendants"); and Greystar (together

with SBDTLA Defendants, "Moving Defendants") filed a demurer and motion to strike portions of Plaintiff's complaint.

On

August 19, 2026, Plaintiff filed oppositions.

On

September 1, 2026, Moving Defendants filed replies.

The

court begins by addressing the demurrer.

II. DISCUSSION

RE DEMURRER

A. Judicial Notice

Moving Defendants request judicial

notice of a grant deed by defendants SBDTLA Defendants, dated March 31, 2023 to 600 S Spring Owner, LLC. The request is

GRANTED.

B.

Legal Standard

A demurrer for sufficiency tests

whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

C. Application

1. Statute of Limitations

Moving Defendants’

principal argument is straightforward: because Plaintiff filed this action more than three years after they ceased being the owners of the Property, Demurring Defendants contend Plaintiff’s causes of action are time barred. With respect to the first cause of action for violation of Civil Code § 1942.4, third cause of action for private nuisance, fourth cause of action for negligence, seventh cause of action for intentional infliction of emotional distress, eighth cause of action for intentional influence to vacate[1], ninth cause of action for violation of Consumer Legal Remedies Act[2], tenth cause of action for violation of Los Angeles Tenant Anti-Harassment Ordinance, and twelfth cause of action negligent hiring, retention, and supervision alleged against SBDTLA Defendants, the argument is meritorious. Each of these causes of action are subject to a three-year statute of limitation. (See Code Civ. Proc., §§ 335.1, 338(a)-(b); Civ. Code § 1783; LAMC, § 45.35(G).) Given Plaintiff filed this action more than three years after SBDTLA Defendants ceased being the owners of the Property on March 31, 2023 (see Request for Judicial Notice (RJN), Ex. A), these claims against SBDTLA Defendants are time-barred.

However, the statute of limitations argument otherwise fails in three ways. First, as to Greystar, the Request for Judicial Notice establishes only that SBDTLA Defendants transferred ownership of the Property. Greystar does not appear on the face of the grant deed. Accordingly, Greystar cannot rely on the

March 31, 2023 date to cut off its liability.

Second, the second

cause of action for tortious breach of the warranty of habitability, fourth cause of action for violation of Business and Professions Code § 17200, et seq., sixth cause of action for breach of covenant of quiet enjoyment, and eleventh cause of action for false advertising are not clearly time barred. The second and sixth causes of action arise from a written lease agreement. (See Complaint, ¶ 55.) The court finds the allegation is sufficient to apply the four-year statute of limitations period to the second and sixth causes of action. (See Code Civ. Proc., § 337.) As to the fourth and eleventh causes of action which arise under the Unfair Competition Law (UCL), a four-year statute of limitation likewise applies. (Bus. & Prof. Code, § 17208.) The four-year period applies even if the predicate violations are themselves time barred. (See *Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 179.)

In sum, SBDTLA

Defendants' demurrers to the first, third, fourth, seventh, eighth, ninth, tenth, and twelfth causes of action are SUSTAINED WITHOUT LEAVE TO AMEND.

The balance

of the demurrers based on statute of limitations is OVERRULED.

2. Uncertainty

Moving

Defendants next advance several uncertainty challenges to the Complaint. Given the court's ruling sustaining SBDTLA Defendants' demurrers to the first, third, fourth, seventh, eighth, ninth, tenth, and twelfth causes of action, the court need only address two of the uncertainty challenges: (1) the Complaint is uncertain because the allegations group together all defendants without differentiation; (2) the eleventh cause of action for false advertising is uncertain.

With respect to the objection to

"group pleading" of Defendants, the court is not persuaded. The Complaint is clear enough for Moving Defendants to understand that each and every allegation is asserted against them. Any additional uncertainty may be addressed in discovery.

With respect to the false

advertising claim, the uncertainty challenge also fails. A cause of action for false advertising in violation of Business and Professions Code §17500 includes: (1) the defendant intended to dispose of real or personal property or perform services; and (2) the defendant publicly disseminated advertising containing an untrue or misleading statement; (3) the defendant knew, or should have known, it was untrue or misleading; and (4) it concerned the real or personal property or services or their disposition or performance; or defendant publicly disseminated advertising with the intent not to sell the property or services at the price stated or as advertised.” (Bus. & Prof. Code §17500.) “To state a claim under either the UCL or the FAL, based on false advertising or promotional practices, ‘it is necessary only to show that members of the public are likely to be deceived.’” (Brady v. Bayer Corp. (2018) 26 Cal.App.5th 1156, 1173.) It need not be shown that most people reading the advertisement will be deceived, just that “it is probable that a significant portion of the general consuming public or of targeted consumers, acting reasonably in the circumstances, could be misled.” (Lavie v. Procter & Gamble Co. (2003) 105 Cal.App.4th 496, 508.) Here, the Complaint alleges that Defendants made the Property to the public for lease and rent, and falsely advertised the Property in pictures that it was clean, and safe and falsely promised it had security and locked doors. (Complaint, ¶¶ 179-188.) The claim is sufficiently clear.

The demurrers based on uncertainty are OVERRULED.

IV. MOTION TO STRIKE

A. Legal Standard

Motions to strike are used to reach defects or objections to pleadings that are not challengeable by demurrer, such as words, phrases, and prayers for damages. (See Code Civ. Proc. §§ 435, 436, and 437.) The proper procedure to attack false allegations in a pleading is a motion to strike. (Id. § 436(a).)

“The court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of

complaint], or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Id. § 436(a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (Id., § 431.10.) The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Id. § 436(b).)

B. Application

Moving

Defendants move to strike the claims for punitive damages, attorney’s fees, and “irrelevant, inflammatory, or improper matter.”

1. Punitive Damages

Moving Defendant move to strike the punitive damages claim on the grounds (1) the allegations are boilerplate and (2) insufficient to establish malice, oppression, or fraud by corporate leaders. “An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294(b).) 1

After reviewing the allegations in the Complaint, the court finds malice or oppression is sufficiently pleaded. Punitive damages may be recoverable for breaches of the implied warranty of habitability. (See, e.g., *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 916-17, 920.) Here, the Complaint alleges that Defendants knew that the Property was not fit for human occupation, but made the conscious decision to subject Plaintiff to the substandard and illegal living conditions. (Complaint, ¶ 76.) The conditions include inconsistent hot water supply, defective fire alarms, dysfunctional plumbing systems, leaking pipes and sewage, low water pressure, dysfunctional

electrical systems, rodents, missing balcony doorknob, inoperable elevator, inadequate security, and inoperable smoke alarms.¿ (Complaint, ¶ 50.)¿

However, the Complaint does not adequately plead knowledge on the part of Moving Defendants' officer, director, or managing agent.¿ The Complaint alleges merely on information and belief that the "Property has been subject to multiple inspections by the Los Angeles Housing and Community Investment Department "Housing Department" and/or the Los Angeles Department of Public Health "Health Department" that resulted in citations against the Defendant for multiple violations of the California Civil Code, the California Health and Safety Code, the Los Angeles Municipal Code, or the respective city government municipal code corresponding to the Subject Property, and that Moving Defendants did not correct the cited violations.¿ (Complaint, ¶¶ 17, 18.) There are no allegations providing the basis for that belief. Accordingly, the allegations do not support the inference that Moving Defendants' managers, officers, or corporate leaders ratified the conditions on the Property by failing to correct them.

The motion to strike punitive damages allegations as listed across pages 7 and 8 of the motion is GRANTED. Leave to amend is DENIED WITHOUT PREJUDICE.[3]

2. Attorney's Fees

Moving

Defendants argue attorney's fees should be stricken from paragraphs 5, 7, and 8 of the Prayer for Relief. The motion to strike is meritorious only as to paragraph 5 of the Prayer for Relief. Paragraph 5 seeks, in part, reasonable attorney's fees pursuant to Business and Professions Code section 17200. That statute does not authorize an award of attorney's fees for the asserted claims. Paragraphs 7 and 8, however, are tethered to statutes which allow for the recovery attorney's fees.

Accordingly, the motion to strike "reasonable attorney's fees" from paragraph 5 of the Prayer for Relief is GRANTED WITHOUT LEAVE TO AMEND. The motion to strike the relevant portions of paragraphs 7 and 8 of the Prayer for Relief is DENIED.

3. Irrelevant,

Inflammatory, or Improper Matter

Moving Defendants argue the Complaint “contains rhetoric and generalized social commentary that is irrelevant, prejudicial, and improper, including characterizations such as “vile,” “disgusting,” “most vulnerable among us,” and similar phrases.”

(Mot., p. 10:5-7.) The argument is not well taken. The challenges allegations provide background. (See Mot., pp. 10-12.)

The motion to strike the purportedly “irrelevant, inflammatory, or improper matter” is DENIED.

VI. CONCLUSION

With respect to SBDTLA Defendants, the demurrers to the first, third, fourth, seventh, eighth, ninth, tenth, and twelfth causes of action are Sustained Without Leave to Amend.

The balance of the demurrers is Overruled.

Moving Defendants' motion to strike is Granted In Part, Denied In Part, as stated above. Leave to Amend is Denied.

Moving Defendants are ordered to file their answer(s) to the Complaint within 10 days of this order.

Moving Defendants to give notice, unless waived.

Dated: September 9,
2026

Brock Hammond

Judge of the Superior Court

The eighth cause of action is based on violations of Civil Code section 1940.2. (See Complaint, ¶¶ 147-157.)

[2]

The CLRA claim fails for the further reason such a claim does not apply to residential lease agreements. (See McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457.)

[3] Plaintiff may seek leave to amend if she uncovers additional facts during discovery to support the punitive damages claim.